

Meta Platforms

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1.1 “**Authorized Use**” means use of the Font Software in connection with your provisions of products and/or services to Meta under the Order and any other use authorized by Meta in writing

1.2 “**Authorized User**” means any affiliate of You identified in an Order as authorized to use the Font Software in accordance with the terms of this Agreement.

1.3 “**Device**” means any device (and in the case of devices which allow simultaneous use by multiple individuals, each individual user account on any such device) capable of using the Font Software, regardless of where the Font Software is installed.

1.4 “**Documentation**” means any explanatory written materials and files or other user documentation provided to you by Meta in connection with your use of the Font Software.

1.5 “**Font Software**” means those computer programs and related data licensed pursuant to this Agreement (the name(s) of which are listed on the Order) which, when used on a Device, generates typeface and typographic designs and ornaments. Font Software includes all Documentation, bitmap representations of typeface and typographic designs and ornaments created by or derived from the Font Software, upgrades and updates (each of which may be provided to you by Meta in its sole discretion), and any permitted modifications or copies.

1.6 “**Order**” means any document between you and Meta containing your contact and payment information, products and services ordered, applicable fees and any other relevant information. Orders may include invoices, receipts, statements and other documents, as applicable.

1.7 “**Permitted Device(s)**” means the number of Device(s) specified on the Order.

1.8 “You” (and any variation thereof, such as “your”) means the person or entity that will be, upon a valid acceptance of this Agreement, authorized to use the Font Software.

2. **License.** Subject to the terms and conditions of this Agreement, Meta grants You and your Authorized Users a non-exclusive, revocable, non-transferable, non-assignable, limited license (without any right of sublicense) to (a) install the Font Software only on a Permitted Device(s), (b) make one (1) backup copy of the Font Software for archival purposes only (provided that you retain exclusive custody and control over such copy and such copy includes the same proprietary notices that appear on or in the Font Software) and (c) use the Font Software only for an Authorized Use and only as set forth in the Documentation.

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3.1.3. alter, remove or obscure Meta’s proprietary notice (including copyright, trademark or other legal notices) in any of the Font Software;

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5.2 YOU UNDERSTAND AND AGREE THAT YOU DOWNLOAD AND/OR USE THE FONT SOFTWARE AT YOUR SOLE DISCRETION AND RISK AND THAT YOU WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGES TO ANY DEVICE OR FOR ANY LOSS OF DATA THAT RESULTS FROM SUCH DOWNLOAD AND/OR USE.

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6. Limitation of Liability. THE FONT SOFTWARE IS NOT INTENDED FOR USE IN CONNECTION WITH ANY NUCLEAR, AVIATION, MASS TRANSIT OR MEDICAL APPLICATION OR ANY OTHER INHERENTLY DANGEROUS APPLICATION THAT COULD RESULT IN DEATH, PERSONAL INJURY, CATASTROPHIC DAMAGE OR MASS DESTRUCTION, AND YOU AGREE THAT META WILL HAVE NO LIABILITY OF ANY NATURE AS A RESULT OF ANY SUCH USE OF THE FONT SOFTWARE. IN NO EVENT WILL META BE LIABLE FOR ANY CONSEQUENTIAL, INDIRECT, EXEMPLARY, SPECIAL, INCIDENTAL OR PUNITIVE DAMAGES WHATSOEVER (INCLUDING DAMAGES FOR LOSS OF BUSINESS PROFITS, BUSINESS INTERRUPTIONS, LOSS OF BUSINESS INFORMATION OR ANY OTHER LOST DATA OR OTHER PECUNIARY LOSS) ARISING FROM OR RELATING TO THIS AGREEMENT OR ARISING OUT OF THE USE OF OR INABILITY TO USE THE FONT SOFTWARE, EVEN IF YOU HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. META'S TOTAL CUMULATIVE LIABILITY FOR ANY AND ALL CLAIMS ARISING FROM OR RELATED TO THIS AGREEMENT AND THE FONT SOFTWARE, WHETHER IN CONTRACT OR TORT OR OTHERWISE, WILL NOT EXCEED THE AMOUNT OF LICENSE FEES PAID BY YOU FOR YOUR LICENSE TO USE THE FONT SOFTWARE.

7. Indemnification. You, at your expense, shall indemnify Meta against all losses, damages, claims, expenses (including attorneys' fees and court costs) arising out of or resulting from (a) any use of the Font Software by you (unless and only to the extent the loss is attributable to a breach by Meta of any obligation under this Agreement), (b) any breach by you of this Agreement or (c) any actions by any of your agents, employees, officers, directors, shareholders, advisors, successors and assigns and any of their affiliates that would constitute a breach of this Agreement if that person or entity were a party to this Agreement and its obligations were substantially the same as your obligations.

8. Termination. This Agreement is effective until it is terminated. You may terminate this Agreement at any time by giving written notice to Meta. This Agreement will automatically terminate, without any requirement of notice, if you materially breach this Agreement or fail to pay when due any amount you owe to Meta. Upon

termination of this Agreement, all license rights granted to you and all of Meta's obligations and liabilities under this Agreement will immediately terminate and you must promptly cease all use of the Font Software and return or destroy all copies of the Font Software in your possession or under your control and certify in writing to Meta that you have fully complied with these requirements. All other provisions of this Agreement will survive such termination.

9. Export. You may not install, export, or re-export the Font Software (a) into, or to a national or resident of, any country to which the United States has embargoed goods or (b) to anyone on the United States Treasury Department's list of Specially Designated Nationals or the U.S. Commerce Department's Table of Deny Orders. By installing or using the Font Software, you represent and warrant that you are not located in, under the control of, or a national or resident of any such country or on any such list.

10. U.S. Government End Users. The Font Software is a "commercial item" as that term is defined at 48 C.F.R. 2.101, consisting of "commercial computer software" and "commercial computer software documentation" as such terms are used in 48 C.F.R. 12.212. Consistent with 48 C.F.R. 12.212 and 48 C.F.R. 227.7202-1 through 227.7202-4, all U.S. Government end users acquire the Font Software with only those rights set forth therein.

11. Miscellaneous. This Agreement, with the Order, constitutes the entire agreement between you and Meta with respect to the Font Software and, except as expressly provided in the first paragraph of this Agreement, supersedes any previous oral or written communications or documents (including, if you are obtaining a new version of the Font Software, any agreement that may have been included with an earlier version of the Font Software). In the case of a conflict between this Agreement and the Order, the Order shall control. You may not assign this Agreement or any of the rights or licenses granted under this Agreement to any person or entity. Any attempted sublicense, transfer or assignment in violation of this Agreement is void and is a material breach of this Agreement. This Agreement is governed by the laws of the State of California, USA. This Agreement will not be governed by the U.N. Convention on Contracts for the International Sale of Goods. Any action or proceeding you bring against Meta arising from or relating to this Agreement or your use of the Font Software must be brought in a federal court in the Northern District of California or in state court in Santa Clara County, California, and you irrevocably submit and consent to the jurisdiction and venue of any such court in any such action or proceeding. If any provision of this Agreement is found to be invalid or unenforceable, it will be enforced to the extent permissible and the remainder of this Agreement will remain in full force and effect. Failure to prosecute a party's rights with respect to a breach hereunder will not constitute a waiver of the right to enforce rights with respect to the same or any other breach. The headings of Sections of this Agreement are for convenience and are not to be used in interpreting this Agreement. As used in this Agreement, the word "including" and all variants thereof will be interpreted to be followed by the clause "but not limited to."